

so neither can the charge be made by a *firm* of which he is a parther (*i*), even though the business be done by one of the partners who is not a trustee (*j*); but a country solicitor defending a suit in Chancery as executor, through a [*282] *town agent*, will be allowed such *proportion of the agent's bill in respect of the defence, as such agent is entitled to receive (*a*); and a trustee may employ his partner as the solicitor to the trust, and pay the usual professional charges, if by the articles of partnership the trustee is not to participate in the profits or have any benefit from such charges (*b*).

17. **Cradock v. Piper.**—In *Cradock v. Piper* (*c*), the principle of the rule was held not to apply where several *co-trustees* were made defendants to a suit, this being a matter thrust upon them and beyond their own control, so that one of the trustees, who was a solicitor, was allowed to act for himself and the others, and to receive the full costs, it not appearing that they had been increased through his conduct. But this decision is open to comment. If the distinction be made between costs out of court and costs in court, because as regards the latter, the conduct of the trustee is under the cognizance of the Court, and the costs are to be taxed, the rule would equally apply to the case of a single trustee defending himself (*d*). The exception appears to be anomalous, and is not likely to be extended. Indeed where a single trustee defended himself by his partner, the professional profits were disallowed (*e*).

18. **Trustee may accidentally be advantaged, as by failure of heirs of the cestui que trust.**—[Prior to the Intestates Estates Act, 1884, a trustee might by *possibility* have derived] a benefit from the trust estate, not from any positive right in himself, but from the want of right in any other; as if lands

(*i*) *Collins v. Carey*, 2 Beav. 128; *Lincoln v. Windsor*, 9 Hare, 158.

(*j*) *Christophers v. White*, 10 Beav. 523.

(*a*) *Burge v. Burton*, 2 Hare, 373.

(*b*) *Clack v. Carlon*, 7 Jur. N. S. 441.

(*c*) 1 Mac. & G. 664; S. C. 1 Hall

& Tw. 617; overruling *Bainbrigge v. Blaire*, 8 Beav. 588.

(*d*) See *Broughton v. Broughton*, 2 Sm. & G. 422; 5 De G. M. & G. 160.

(*e*) *Lyon v. Baker*, 3 De G. & Sm. 622. And see *Manson v. Baillie*, 2 Macq. H. L. Ca. 80.